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FEDERAL REGISTER

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Washington, Friday, March 7, 1941

The President

EXECUTIVE ORDER

AMENDING CERTAIN PROVISIONS OF THE CIVIL SERVICE RULES

By virtue of and pursuant to the authority vested in me by the Civil Service Act (22 Stat. 403), and by section 1753 of the Revised Statutes (U.S.C., title 5, sec. 631), the Civil Service Rules are hereby amended as follows:

Section 1 of Rule I is amended to read:

1. *No interference with elections.* No person in the executive civil service shall use his official authority or influence for the purpose of interfering with an election or affecting the results thereof. Persons who by the provisions of these rules are in the competitive classified service, while retaining the right to vote as they please and to express their opinions on all political subjects, shall take no active part in political management or in political campaigns.

Section 5 of Rule XII is amended to read:

5. *Retention of soldiers and sailors.* In harmony with statutory provisions, when reductions are being made in the force, in any part of the classified service, no employee entitled to military preference in appointment shall be discharged, dropped, or reduced in rank or salary before any employee not entitled to military preference in competition with him if his record is good; nor shall any classified employee entitled to military preference in appointment be discharged, dropped, or reduced in rank or salary before any employee not entitled to military preference in competition with him if his efficiency rating is less than good but better than, or equal to, that of any such non-preference employee.

Civil Service Rule XV is amended to read:

Legal appointment necessary to compensation. Whenever the Commission finds, after due notice and opportunity for explanation, that any person has been appointed to or is holding any position, whether by original appointment, promotion, assignment, transfer, or reinstatement, in violation of the Civil Service Act or Rules, or of any Executive order or any regulation of the Commission, or that any employee subject thereto has violated such Act, Rules, orders, or regulations, it shall certify the facts to the proper appointing officer with specific instructions as to discipline or dismissal of the person or employee affected. If the appointing officer fails to carry out the instructions of the Commission within 10 days after receipt thereof, the Commission shall certify the facts to the proper disbursing and auditing officers, and such officers shall make no payment or allowance of the salary or wages of any such person or employee thereafter accruing.

This order shall be effective as of November 7, 1940.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
March 5, 1941.

[No. 8705]

[F. R. Doc. 41-1697; Filed March 6, 1941; 11:58 a. m.]

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FEDERAL REGISTER

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TITLE 30—MINERAL RESOURCES

CHAPTER III—BITUMINOUS COAL DIVISION

[Docket No. A-61]

PART 333—MINIMUM PRICE SCHEDULE, DISTRICT NO. 13

ORDER OF THE DIRECTOR APPROVING AND ADOPTING THE PROPOSED FINDINGS OF FACT AND CONCLUSIONS OF LAW OF THE EXAMINER; AND GRANTING PERMANENT RELIEF IN THE MATTER OF THE PETITION OF DISTRICT BOARD 13 FOR THE ESTABLISHMENT OF PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR THE COALS OF CERTAIN MINES NOT HERETOFORE CLASSIFIED AND PRICED

An original petition, pursuant to section 4 II (d) of the Bituminous Coal Act of 1937 and Order No. 303 of the Bituminous Coal Division, having been duly filed with the Division by District Board 13 on October 1, 1940, seeking the establishment of price classifications and minimum prices for the coals of certain mines not theretofore classified and priced; and

Temporary relief pending final disposition of this proceeding having been granted by Order of the Director dated October 9, 1940, establishing temporary effective minimum prices for the coals covered in the District Board's proposals; and

A hearing having been held before a duly designated Examiner of the Division, at a Hearing Room of the Division, Hotel Roger Smith, Washington, D. C., between November 13, and 18, 1940; and

The Examiner having made Proposed Findings of Fact and Conclusions of Law in this matter, dated January 11, 1941; and

An opportunity having been afforded to all parties to file exceptions thereto and supporting briefs; and no such exceptions or supporting briefs having been filed; and

The Director having determined that the Proposed Findings of Fact and Conclusions of Law of the Examiner in this matter should be approved and adopted as the Findings of Fact and Conclusions of Law of the Director:

It is ordered, That the said Proposed Findings of Fact and Conclusions of Law of the Examiner be and the same are hereby approved and adopted as the Findings of Fact and Conclusions of Law of the Director; and

It is further ordered, That Temporary Schedule A, annexed to and made part of the Order of the Director dated October 9, 1940, granting temporary relief in Docket No. A-61, be and the same hereby is amended as follows:

1. Change the note with respect to Mine Index No. 40 to read as follows:

"Insert price on all price tables for Size Group No. 23, the same as the price listed on such price tables for the coals in Size Group No. 18 produced at Mine Index No. 31."

2. Delete the prices for Mine No. 1 of Fay and Smith (C. R. Fay), Mine Index No. 373; Willcut No. 2 of Paul Brazill, Mine Index No. 776; Perrin Mine of Ellis Coal Company (R. M. Hand), Mine Index No. 511; and Fikes Mine of Tom Norris, Mine Index No. 780, which mines are already classified and priced in the effective price schedules under the name of the predecessors of said producers.

It is further ordered, That §§ 333.3 (*Alphabetical list of code members in Subdistrict No. 1*), 333.3 (a) (*Alphabetical list of code members in Subdistrict No. 2*), 333.34 (*General prices in cents per ton for shipment into all market areas*—Alabama) and 333.43 (*General prices in cents per ton for shipment into all market areas*—Tennessee) are amended by adding thereto the supplements dated March 4, 1941, which are hereinafter set forth.

It is further ordered, That the prices set forth in Schedule A (Temporary Schedule A as herein amended) be and the same are hereby established, from and after the date of this order, as the effective minimum prices for the coals specified therein.

Dated: March 4, 1941.

[SEAL] H. A. GRAY,
Director.

SCHEDULE A—EFFECTIVE MINIMUM PRICES FOR DISTRICT NO. 13

NOTE: The material in this Schedule A is to be read in the light of the classifications, prices, instructions, exceptions, and other provisions contained in Part 333, Minimum Price Schedule for District No. 13 and supplements thereto.

FOR ALL SHIPMENTS EXCEPT TRUCK

§ 333.3 *Alphabetical list of code members in Subdistrict No. 1*

[Prices f. o. b. mines for shipments by railroad for the following mines are as noted below applicable for all uses except railroad locomotive fuel, steamship bunker fuel and blacksmithing]

Mine index No.	Code member	Mine	Subdistrict	Seam	Freight origin group
12	Bloeton Mining Co	Klondyke	1	Woodstock	41
10	Southern Minerals Co. (Samuel J. Hutchinsen).	Red Feather	1	Wadsworth	43
40	Twin Seam Mining Co	Searles #5	1	Brookwood	180
683	McCullar, J. A	Millstone #8	2	Black Creek	

MINE INDEX NO. 12: Delete prices listed in Size Group No. 23 in Price Schedule No. 1 on all price tables. Insert prices on all price tables in Price Schedule No. 1 for Size Group No. 14 five cents less than the prices listed on such price tables for Size Group No. 13. Insert prices on all price tables for Size Groups Nos. 2, 4, 6, 17, 18, and 26 the same as prices listed on such price tables for mines with Index Nos. 9 and 11.

MINE INDEX NO. 10: Insert price on all price tables for Size Group No. 1 the same as shown on such price tables for Mine Index No. 5. This mine shall be permitted the same seasonal discounts applicable to Mine Index No. 5.

MINE INDEX NO. 40: Insert price on all price tables for Size Group No. 23, the same as the price listed on such price tables for the coals in Size Group No. 18 produced at Mine Index No. 31.

MINE INDEX NO. 683: This mine shall have the same prices on all price tables as listed for mines with Index Numbers 18, 19, and 21, except it shall have no prices for Size Groups Nos. 17 and 18, but shall have prices in Size Groups Nos. 22 and 23 ten cents less than the prices listed for Size Groups Nos. 17 and 18 respectively, applicable to Mine Index Nos. 18, 19, and 21.

§ 333.3 (a) *Alphabetical list of code members in Subdistrict No. 2*

[Prices f. o. b. mines for shipment by railroad, applicable for all uses except railroad locomotive fuel, steamship bunker fuel and blacksmithing (see notes below)]

The following mines shall have the same prices in Size Groups 17 and 18 on all price tables in Price Schedule No. 1 as listed for mines with Index Nos. 18, 19, and 21.

Code member	Mine	Mine index No.	Subdistrict	Seam	Freight origin group
CULLMAN COUNTY					
Freeman Coal Company (Willie S. Freeman)	Freeman	249	2	Black Creek	80
MARION COUNTY					
Burgess, J. H	Burgess	411	2	Black Creek	101
Dodd, Lee	Hollis #5	421	2	Black Creek	101
Farris, Claud	Kelly #3	427	2	Black Creek	101
Hollis, Voster	Hollis #6	437	2	Black Creek	101
Leith, George	Hollis #2	450	2	Black Creek	101
Pate & Son (Sterling Pate)	Pate & Son	466	2	Black Creek	101
Segars, J. D	Segars	472	2	Black Creek	101
Whitehead & Fikes	Kelly #1	485	2	Black Creek	101

The following mines shall have the same prices in Size Groups 17 and 18 on all price tables in Price Schedule No. 1 as listed for mines with Index Numbers 22 and 23.

WALKER COUNTY					
Argo & Wade (Guy L. Argo)	Drummond #1	574	2	Black Creek	80
Bradford, George	Bradford	570	2	Black Creek	80
Cupps, D. D	Cupps (Tucker 7)	793	2	Black Creek	80
Dill, A	Cooley #4	581	2	Black Creek	80
Drummond, Homer	New Bridge #2	795	2	Black Creek	80
Drummond & Nichols	D & N	586	2	Black Creek	80
Estes, Wesley	Grace #2	949	2	Blue Creek	80
Fortenberry, Ed	Fortenberry	595	2	Black Creek	80
Franklin, E. B	Tucker #16	597	2	Black Creek	80
Harris & Hamilton (J. D. Harris)	Drummond #2	582	2	Black Creek	80
Headrick, W. P	Headrick Coal Co	609	2	Black Creek	80
McBride Brothers (Chas. C. McBride)	Aycock 2 and 3	622	2	Black Creek	80
McBride, Chas. C	Cooley #1	579	2	Black Creek	80
Phillips, Farlon	Phillips	637	2	Black Creek	80
Reeves, John	Henson #3	617	2	Black Creek	80
Reeves, John	Reeves	644	2	Black Creek	80
Rice, Herman	Rice #4	645	2	Black Creek	80
Rice, Preston	Rice #1	647	2	Black Creek	80
Robbins, Mack	Robbins Coal Co	648	2	Black Creek	80
Rouse, V. A	Henson #2	650	2	Black Creek	80
Taft, W. M. (Taft Coal Co.)	Taft Coal Co	657	2	Black Creek	80

NOTE: The above mines do not have rail connections, but truck coal to a washery which is located on the railroad.

Effective Minimum Prices for District No. 13

for all truck shipments

§ 333.34 *General prices in cents per ton for shipment into all market areas*

ALABAMA

Code member index	Mine	Sub-district	Mine index No.	Seam	Lump: Over 2"; Egg: Top Size over 6"	Egg: Top Size 6" and under	Lump: 2" and under	Nut: Top Size 3" and under; Bot. Size over ½"		Chestnut: Top Size 3" and under; Bot. Size ¼" and under		Chestnut: Top Size 1¼" and under; Bot. Size ½" and under		Run of Mine Modified R/M	Resultants: 3" and under		Screenings: 1¼" and under		*Industrial Coal
								Wash	Raw	Wash	Raw	Wash	Raw	Raw	Wash	Raw	Wash	Raw	
					1	2	3	6	7	8	9	10	11	13	17	22	18	23	24, 25, 26
BIBB COUNTY																			
Southern Minerals Company (Samuel J. Hutchinson)	Red Feather	1	10	Wadsworth	365														
CULLMAN COUNTY																			
Tidmore Coal Company (Erskine Tidmore)	Tidmore	2	926	Black Creek	385	385	360	335	315	315	305	310	300	290	275	265	265	250	290
JACKSON COUNTY																			
Wood, Luther	Sam Hodges	2	928	Belmont	325	325	325	320	310	310	295	305	290	265	235	200	230	180	265
JEFFERSON COUNTY																			
Chappell & Son, W. P	Chappell	2	937	Black Creek	355	355	340	345	325	310	300	295	285	285	275	265	265	250	285
Mosley, Fred	Wildcat Hollow	2	924	Black Creek	355	355	340	345	325	310	300	295	285	285	275	265	265	250	285
Neely, Millard	Bug Tussle	2	936	Black Creek	355	355	340	345	325	310	300	295	285	285	275	265	265	250	285
MARION COUNTY																			
Guthrie, Fred	Winston #5	2	436	Black Creek	385	385	360	335	315	315	305	310	300	290	275	265	265	250	290
TUSCALOOSA COUNTY																			
Hyche, P. A	Hyche	2	935	Carter	355	355	340	345	325	310	300	295	285	285	275	265	265	250	285
WALKER COUNTY																			
Covin, L. V	Covin	2	27	Pratt	325	325	325	320	310	310	295	305	290	265	270	250	265	240	265
Pickett, B. C	Mitchell Hollow	2	922	Black Creek	385	385	360	335	315	315	305	310	300	290	275	265	265	250	290
Pratt-American Coal Company	Pratt-American	2	28	Pratt	325	325	325	320	310	310	295	305	290	265	270	250	265	240	265
Rhodes Brothers (Oley Rhodes)	Henson #2	2	650	Black Creek	385	385	360	335	315	315	305	310	300	290	275	265	265	250	290
WINSTON COUNTY																			
McCullar, J. A	Millstone #8	2	683	Black Creek	385	385	360	335	315	315	305	310	300	290	275	265	265	250	290
Ratliff & McMillan (Tom Ratliff)	Millstone #9	2	808	Black Creek	385	385	360	335	315	315	305	310	300	290	275	265	265	250	290

§ 333.43 *General prices in cents per ton for shipment into all market areas*

TENNESSEE

Code member index	Mine	Subdistrict	Mine index No.	Seam	Lump: over 2" egg: top size over 5"	Egg: top size 5" and under, bot. size 2" and under	Lump: 2" and under	Nut: top size 2" and under, bot. size 1" and under	Stoker: top size 1½" and under, bot. size ½" and under	Stoker: top size ¾" and under, bot. size ⅜" and under	Straight and modified mine run	Resultants: 5" and under	Resultants: 4" and under	Screenings: 2" and under	Screenings: 1½" and under	Screenings: 1¼" and under	Screenings: ¾" and under	Screenings: ⅜" and under	Industrial coal, see size group table
					1	2	3	4	5	6	7	8	9	10	11	12	13	14	15
GRUNDY COUNTY																			
Thomas, J. W.	Thomas	4	921	Sewanee	315	315	305	260			235	235	235	205	205				260
HAMILTON COUNTY																			
Levi Brothers (W. M. Levi)	Levi Brothers	4	923	#10			295				225	225	225	205	205				25
Waldens Ridge Coal Corp.	Daisy	4	929	#10			295				225	225	225	205	205				250
VAN BUREN COUNTY																			
Rice, Mack P.	Boldin Branch	4	925	Sewanee	315	315	315	260			235			200		195			260

[F. R. Doc. 41-1643; Filed, March 5, 1941; 11:43 a. m.]

TITLE 47—TELECOMMUNICATION

CHAPTER I—FEDERAL COMMUNICATIONS COMMISSION

PART 3—RULES GOVERNING STANDARD AND HIGH-FREQUENCY BROADCAST STATIONS

STATION IDENTIFICATION

The Commission on March 4, 1941, effective immediately, amended the following section to read:

§ 3.406 *Station identification.* (a) A licensee of a standard or high-frequency broadcast station shall make station identification announcement (call letters and location) at the beginning and ending of each time of operation and during operation on the hour and half hour as provided below:

(b) Such identification announcement need not be made on the hour when to make such announcement would interrupt a single consecutive speech, play, religious service, symphony concert, or operatic production of longer duration than 30 minutes. In such cases the identification announcement shall be made at the beginning of the program, at the first interruption of the entertainment continuity, and at the conclusion of the program.

(c) Such identification announcement need not be made on the half hour when to make such announcemet would interrupt a single consecutive speech, play, religious service, symphony concert, or operatic production. In such cases an identification announcement shall be made at the first interruption of the entertainment continuity, and at the conclusion of the program, provided that an announcement within 5 minutes of the half hour will waive the requirements of other identification announcements.

(d) In case of variety-show programs, baseball game broadcasts, or similar programs of longer duration than 30 minutes, the identification announcement shall be made within 5 minutes of the hour and half hour.

(e) In case of all other programs (except as provided in paragraphs (b) and (c) of this section) the identification announcement shall be made within 2 minutes of the hour and half hour.

(f) In making the identification announcement the call letters shall be given only on the channel of the station identified thereby. (Sec. 4 (i), 48 Stat. 1068; 47 U.S.C. 154 (i))

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 41-1690; Filed, March 6, 1941; 11:32 a. m.]

PART 12—RULES GOVERNING AMATEUR RADIO: STATIONS AND OPERATORS

NONPORTABLE STATIONS

The Commission on March 4, 1941, effective immediately, amended paragraph (a) of § 12.93 *Special provisions for nonportable stations,* to read as follows:

(a) An amateur station that has been moved from one permanent location to another permanent location may be operated at the latter location in accordance with the provisions governing portable stations for a period not exceeding four months, but in no event beyond the expiration date of the license, provided an application for modification of license to change the permanent location has been made to the Commission in accordance with the rules and regulations. (Sec. 4 (i), 48 Stat. 1068; 47 U.S.C. 154 (i))

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 41-1691; Filed, March 6, 1941; 11:32 a. m.]

[Order No. 76-A]

PART 12—RULES GOVERNING AMATEUR RADIO: STATIONS AND OPERATORS

The Commission having under consideration its Rules Governing Amateur Radio Stations and Operators, with particular reference to the provisions concerning renewals, and its Order No. 75:

It is ordered, That all amateur radio station and amateur radio operator licenses which by their terms have expired or will expire during the period July 1, 1940 to September 30, 1941, inclusive, and for which applications for renewal have not been granted or denied

prior to the effective date hereof, *be, and they are hereby, extended,* in respect to each such license until such further action as the Commission may take upon application for renewal or otherwise, but in no event beyond September 30, 1941;

Provided, however, That this extension is granted only to such amateur licensees as have submitted or do submit a proper application for renewal in accordance with the Rules and Regulations of the Commission and have complied or do comply with the requirements of Commission Order No. 75.

Provided further, That this extension shall not apply to licensees whose licenses have been or, prior to September 30, 1941, may be revoked, suspended or designated for hearing.

This Order shall take effect on the 1st day of March, 1941.

By the Commission.

[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 41-1692; Filed, March 6, 1941; 11:32 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

CHAPTER I—INTERSTATE COMMERCE COMMISSION

PART 120—ANNUAL, SPECIAL OR PERIODICAL REPORTS

ANNUAL REPORTS FROM LESSORS TO STEAM RAILWAY COMPANIES

At a session of the Interstate Commerce Commission, Division 1, held at its office in Washington, D. C., on the first day of March, A. D. 1941.

The subject of the requirements of annual reports from lessors to steam railway companies (§ 120.14 *Form prescribed for lessors to steam roads*) being under consideration:

It is ordered:

1. That the order[1] of this Commission dated February 5, 1940, In the Matter of Annual Reports from Lessors to Steam Railway Companies is hereby annulled.

2. That all lessors to steam railway companies within the scope of Section 20, Part I of the Interstate Commerce Act be, and they hereby are, required to file an annual report for the year ended December 31, 1940, and for each succeeding year until further order, in accordance with annual Report Form E (Lessor Companies), which is hereby approved and made a part of this order.[2]

It is further ordered, That the annual report shall be filed in duplicate, in the Bureau of Statistics, Interstate Commerce Commission, Washington, D. C., on or before March 31 of the year following the one to which it relates.

By the Commission, division 1.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 41-1694; Filed, March 6, 1941; 11:42 a. m.]

[1] 5 F.R. 638.
[2] Filed as a part of the original document.

Notices

WAR DEPARTMENT.

[Contract No. W 6103 qm-29; CQM-41-3]

SUMMARY OF CONTRACT FOR CONSTRUCTION

CONTRACTOR: J. A. JONES CONSTRUCTION COMPANY, 209 WEST FOURTH STREET, CHARLOTTE, N. C.

Contract for: Temporary Buildings and Facilities.

Amount: $3,443,632.00.

Place: Fort Jackson, South Carolina.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth therein and are chargeable to Procurement Authorities quoted below, the available balance of which is sufficient to cover the cost of same:

QM 8007 P 3-3211 A 0002.003-02 E. F. for the Pres. War 1940-42 (Allotment to War Dept.).

QM 7002 P 1-3211 A 1738-N. C. of B. U. & A. at MP, No. Yr.

This Contract, entered into this 11th day of September 1940.

Statement of work. The contractor shall furnish the materials, and perform the work for the construction and completion of temporary buildings and facilities at Fort Jackson, South Carolina, for the consideration of three million, four hundred forty three thousand, six hundred thirty-two dollars ($3,443,632.00) in strict accordance with the specifications, schedules, and drawings, all of which are made a part hereof.

Changes. The contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings and/or specifications of this contract and within the general scope thereof.

Delays—Damages. If the contractor refuses or fails to prosecute the work, or any separable part thereof, with such diligence as will insure its completion within the time specified in article 1, or any extension thereof, or fails to complete said work within such time, the Government may, by written notice to the contractor, terminate his right to proceed with the work or such part of the work as to which there has been delay. If the Government does not terminate the right of the contractor to proceed, the contractor shall continue the work, in which event the actual damages for the delay will be impossible to determine and in lieu thereof the contractor shall pay to the Government as fixed, agreed, and liquidated damages for each calendar day of delay until the work is completed or accepted the amount as set forth in the specifications or accompanying papers and the contractor and his sureties shall be liable for the amount thereof.

Payments to contractors. Unless otherwise provided in the specifications, partial payments will be made as the work progresses at the end of each calendar month, or as soon thereafter as practicable, on estimates made and approved by the contracting officer.

All material and work covered by partial payments made shall thereupon become the sole property of the Government.

Upon completion and acceptance of all work required hereunder, the amount due the contractor under this contract will be paid upon the presentation of a properly executed and duly certified voucher therefor.

This contract is authorized by the acts of First Sup. Nat'l Defense Appro. Act. 1941, Pub. No. 667—76th Congress, approved June 26, 1940 and Second Sup. Nat'l Defense Appro. Act. 1941, Public No. 781—76th Congress approved Sept. 9, 1940, and Public No. 703—76th Congress approved July 2, 1940.

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of Purchases and Contracts.

[F. R. Doc. 41-1660; Filed, March 6, 1941; 9:45 a. m.]

[Contract No. W 535 ac-15773 (3705)]

SUMMARY OF CONTRACT FOR SUPPLIES

CONTRACTOR: THE GLENN L. MARTIN COMPANY

Contract for: Gun Turrets.

Amount: $738,555.00.

Place: Materiel Division, Air Corps, U. S. Army, Wright Field, Dayton, Ohio.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in, and are chargeable to Procurement Authority AC 32 P 12-3037 A 0705.003-01, the available balance of which is sufficient to cover cost of same.

This Contract, entered into this 2nd day of October 1940.

Scope of this contract. The contractor shall furnish and deliver to the Government * * * Turrets, gun, * * *, for the consideration stated seven hundred thirty eight thousand five hundred fifty five dollars ($738,555.00), in strict accordance with the specifications, schedules and drawings, all of which are made a part hereof.

Changes. Where the supplies to be furnished are to be specially manufactured in accordance with drawings and specifications, the contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings or specifications, except Federal Specifications. Changes as to shipment and packing of all supplies may also be made as above provided.

Delays—Damages. If the contractor refuses or fails to make deliveries of the materials or supplies within the time specified in Article 1, or any extension thereof, the Government may by written notice terminate the right of the contractor to proceed with deliveries or such part or parts thereof as to which there has been delay.

Payments. The contractor shall be paid, upon the submission of properly certified invoices or vouchers, the prices

stipulated herein for articles delivered and accepted or services rendered, less deductions, if any, as herein provided. Unless otherwise specified, payments will be made on partial deliveries accepted by the Government when the amount due on such deliveries so warrants; or, when requested by the contractor, payments for accepted partial deliveries shall be made whenever such payments would equal or exceed either $1,000 or 50 percent of the total amount of the contract.

Option. The Government is granted the right and option at any time within * * * days from and after the date of approval of this contract to increase the quantity of Gun Turrets called for under Article 1 hereof to any quantity set forth herein, and in the event of the exercise of this option the unit price of each Gun Turret furnished under the terms of this contract shall be the unit price specified herein for the total quantity of Gun Turrets to be purchased.

Termination when Contractor not in default. If, in the opinion of the Contracting Officer upon the approval of The Secretary of War, the best interests of the Government so require, this contract may be terminated by the Government, even though the contractor be not in default, by a notice in writing relative thereto from the Contracting Officer to the contractor.

Partial payments. The contracting officer may, from time to time, authorize partial payments to the contractor upon property acquired and/or produced by it for the performance of this contract.

Title to property where partial payments are made. The title to all property upon which any partial payment is made prior to the completion of this contract, shall vest in the Government.

Fire insurance. The contractor agrees to insure against fire all property in its possession upon which a partial payment is about to be made, such insurance to be in a sum at least equal to the amount of such payment plus all other partial payments, if any, theretofore made thereon, and further agrees to keep such property so insured, free of cost to the Government, until the same is delivered to the Government.

[Serial No. 3510 Date 11/14/40; Change No. 1 to Contract No. W 535 ac-15773; Dated October 2, 1940]

Change Order

AIR CORPS, MATERIEL DIVISION, WRIGHT FIELD, DAYTON, OHIO

To: The Glenn L. Martin Company, Baltimore, Maryland.
Subject: Additional Gun Turrets.
Affecting: Contract W 535 ac-15773.

The Government hereby elects to exercise its right and option contained in Article 21 of Contract W 535 ac-15773 to increase the quantity of Gun Turrets called for under Article 1 of the Contract and it is mutually understood and agreed by the parties hereto, that so much of the provisions of the Contract as are affected by said increases, are changed as set forth hereinbelow:

a. The quantity of Gun Turrets, upper, called for under the terms of Article 1 of Contract W 535 ac-15773, is hereby increased from * * * to * * *; total for Additional Assemblies, $1,125,-146.00.

b. As a result of increasing the quantity of Gun Turrets as set forth hereinabove, the unit price of the articles originally called for under the terms of Article 1 of the Contract, is hereby reduced as indicated herein; total credit, $42,453.00.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in and are chargeable to Procurement Authority AC 34 P 12-3037 A 0705-01 the available balance of which is sufficient to cover cost of same.

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of Purchases and Contracts.

[F. R. Doc. 41-1659; Filed, March 6, 1941; 9:45 a. m.]

[Contract No. W 535 ac-15807 (3719)]

SUMMARY OF CONTRACT FOR SUPPLIES

CONTRACTOR: PUMP ENGINEERING SERVICE CORPORATION

Contract for: Fuel and Vacuum Pumps and Data.

Amount: $623,895.00.

Place: Matériel Division Air Corps, U. S. Army, Wright Field, Dayton, Ohio.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in, and are chargeable to Procurement Authority AC 32 P 12-3037 A 0705.003-01, the available balance of which is sufficient to cover the cost of same.

This Contract, entered into this 10th day of October 1940.

ARTICLE 1. *Scope of this contract.* The contractor shall furnish and deliver to the Government all of the articles and data as set forth more particularly in Article 16 hereof for the consideration stated six hundred twenty-three thousand eight hundred ninety-five dollars ($623,895.00) in strict accordance with the specifications, schedules and drawings, all of which are made a part hereof.

ART. 2. *Changes.* Where the supplies to be furnished are to be specially manufactured in accordance with drawings and specifications, the contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings or specifications, except Federal Specifications. Changes as to shipment and packing of all supplies may also be made as above provided.

ART. 5. *Delays—Damages.* If the contractor refuses or fails to make deliveries of the materials or supplies within the time specified in Article 1, or any extension thereof, the Government may by written notice terminate the right of the contractor to proceed with deliveries or such part or parts thereof as to which there has been delay.

ART. 8. *Payments.* The contractor shall be paid, upon the submission of properly certified invoices or vouchers, the prices stipulated herein for articles delivered and accepted or services rendered, less deductions, if any, as herein provided. Unless otherwise specified, payments will be made on partial deliveries accepted by the Government when the amount due on such deliveries so warrants; or, when requested by the contractor, payments for accepted partial deliveries shall be made whenever such payments would equal or exceed either $1,000 or 50 percent of the total amount of the contract.

ART. 16. *Articles and supplies called for and prices therefor.* The Contractor shall furnish and deliver to the Government all of the following articles in the quantities and at the unit prices indicated below:

* * * Pumps, Fuel, * * *, total, $623,895.00.

The Contractor shall likewise furnish and deliver to the Government, but without additional cost therefor, the following engineering data covering the articles called for under paragraph (1) of this Article:

* * * Set of vandykes of bill of material covering said articles.

* * * Vandykes of Class A drawings and parts lists covering said articles.

* * * Copy of Handbook of Instructions and Parts Catalog covering said Articles.

ART. 19. *Options.* (1) The Government is granted the right and option at any time within * * * days after date of approval of this contract to increase the quantity or quantities of the articles called for under the terms of Article 16 hereof, to any quantity set forth herein.

(2) The Government is granted the further right and option at any time during the life of this contract to increase the quantity or quantities of the supplies called for hereunder at not more than the unit prices stipulated by any amount not exceeding * * * percent of the entire contract price stipulated, said increase to be applied as to all or any item or items at the option of the Government.

ART. 20. *Termination when Contractor not in default.* If, in the opinion of the Contracting Officer upon the approval of The Secretary of War, the best interests of the Government so require, this contract may be terminated by the Government, even though the contractor be not in default, by a notice in writing

relative thereto from the Contracting Officer to the contractor.

ART. 24. It is expressly understood and agreed by both parties hereto that the contractor hereby agrees:

To pay into the Treasury profit, as hereinafter provided shall be determined by the Treasury Department, in excess of 12 per centum of the total contract prices of such contracts within the scope of the law as are completed by the particular contracting party within the income taxable year.

[Serial No. 3670 Date 12-30-40; Change No. 1 to Contract No. W 535 ac-15807; Dated October 10, 1940]

Change Order

Air Corps, Materiel Division, Wright Field, Dayton, Ohio

To: Pump Engineering Service Corporation, 12910 Taft Avenue, Cleveland, Ohio.
Subject: Additional Fuel and Vacuum Pumps.
Affecting: Contract W 535 ac-15807.

The Government hereby elects to exercise its right and option contained in Paragraphs (1) and (2) of Article 19 of Contract W 535 ac-15807 to increase the quantity of Fuel and Vacuum Pumps called for under Article 16, and it is mutually understood and agreed by the parties hereto that so much of the provisions of the contract as are affected by said increases are changed as set forth hereinbelow:

The quantity of Pumps, Fuel, * * *, called for under Article 16 of Contract W 535 ac-15807, is hereby increased from * * * to * * *; total, $2,952,462.15.

As a result of increasing the quantities of pumps as set forth hereinabove, this contract is hereby reduced in the aggregate amount of $32,668.95.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in and are chargeable to Procurement Authorities:

Debit: AC 26 P 81-3037 A 0705-01—$1,173,447.99.
Debit: AC 34 P 12-3037 A 0705-01—$1,779,014.16.
Credit: AC 32 P 12-3037 A 0705.003-01—$22,668.95.

the available balance of which is sufficient to cover cost of same.

This contract authorized under Act of March 5, 1940.

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of Purchases and Contracts.

[F. R. Doc. 41-1662; Filed, March 6, 1941; 9:46 a. m.]

[Contract No. W 6108 qm-86; O. I. N. 6108-CQM-41-81]

SUMMARY OF CONTRACT FOR CONSTRUCTION

CONTRACTOR: O'DRISCOLL & GROVE INC., 247 PARK AVENUE, NEW YORK, N. Y.

Contract for: Construction and completion of temporary housing, road system and surface drainage, water and sanitary sewer system, electric distribution system and * * * Hangar.

Amount: $1,124,400.00 (estimated).

Place: Fort Dix, New Jersey.

This is to certify that the supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in, and chargeable to Procurement Authority, QM 7032 P-1-3211 A-1738-N the available balance of which is sufficient to cover cost of same.

This Contract, entered into this 15th day of October 1940.

Statement of work. The contractor shall furnish the materials, and perform the work for Construction and completion of temporary housing, road system and surface drainage, water and sanitary sewer system, electric distribution system * * * Hangar at Fort Dix, New Jersey for the consideration of One million one hundred twenty-four thousand, four hundred dollars ($1,124,400) (Estimated) in strict accordance with the specifications, schedules, and drawings, all of which are made a part hereof.

Changes. The contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings and/or specifications of this contract and within the general scope thereof.

Delays—Damages. If the contractor refuses or fails to prosecute the work, or any separable part thereof, with such diligence as will insure its completion within the time specified in article 1, or any extension thereof, or fails to complete said work within such time, the Government may, by written notice to the contractor, terminate his right to proceed with the work or such part of the work as to which there has been delay. If the Government does not terminate the right of the contractor to proceed, the contractor shall continue the work in which event the actual damages for the delay will be impossible to determine and in lieu thereof the contractor shall pay to the Government as fixed, agreed, and liquidated damages for each calendar day of delay until the work is completed or accepted the amount as set forth in the specifications or accompanying papers and the contractor and his sureties shall be liable for the amount thereof.

Payments to contractors. Unless otherwise provided in the specifications, partial payments will be made as the work progresses at the end of each calendar month, or as soon thereafter as practicable, on estimates made and approved by the contracting officer.

All material and work covered by partial payments made shall thereupon become the sole property of the Government.

Upon completion and acceptance of all work required hereunder, the amount due the contractor under this contract will be paid upon the presentation of a properly executed and duly certified voucher therefor.

This contract is authorized by the act of Congress—Second Supplemental, National Defense Appropriation Act, 1941, Public 781, 76th Congress, Approved September 9, 1940.

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of Purchases and Contracts.

[F. R. Doc. 41-1664; Filed, March 6, 1941; 9:46 a. m.]

[Contract No. W 6113 qm-39; O. I. #275]

SUMMARY OF CONTRACT FOR CONSTRUCTION

CONTRACTOR: OWEN - AMES - KIMBALL CO., GRAND RAPIDS, MICHIGAN

Contract for: Temporary Buildings and * * * Bed Hospital Group (Modified).

Amount, $1,383,140.00.

Place: Fort Custer, Michigan.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in, and are chargeable to procurement authorities:

QM 7520 Pl-3211 A 0540.068-N
QM 7603 Pl-3211 A 0540.068-N
QM 7051 Pl-3211 A 1738-N

the available balances of which are sufficient to cover the cost of same.

This Contract, entered into this twenty-sixth day of October 1940.

Statement of work. The contractor shall furnish the materials, and perform the work for the construction and completion of Temporary Buildings and * * * Bed Hospital Group at Fort Custer, Michigan, for the consideration of one million, three hundred eighty-three thousand, one hundred forty dollars and no cents ($1,383,140.00), in strict accordance with the specifications, schedules, and drawings, all of which are made a part hereof.

Changes. The contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings and/or specifications of this contract and within the general scope thereof.

Delays—Damages. If the contractor refuses or fails to prosecute the work, or any separable part thereof, with such diligence as will insure its completion within the time specified in article 1, or any extension thereof, or fails to complete said work within such time, the Government may, by written notice to the contractor, terminate his right to proceed with the work or such part of the work as to which there has been delay. If the Government does not terminate the right of the contractor to proceed, the contractor shall continue the work, in which event the actual damages for the delay will be impossible to determine and in lieu thereof the contractor shall pay to the Government as fixed, agreed, and liquidated damages for each calendar day of delay until the work is completed or accepted the amount

as set forth in the specifications or accompanying papers and the contractor and his sureties shall be liable for the amount thereof.

Payments to contractors. Unless otherwise provided in the specifications, partial payments will be made as the work progresses at the end of each calendar month, or as soon thereafter as practicable, on estimates made and approved by the contracting officer.

All material and work covered by partial payments made shall thereupon become the sole property of the Government.

Upon completion and acceptance of all work required hereunder, the amount due the contractor under this contract will be paid upon the presentation of a properly executed and duly certified voucher therefor.

This contract is authorized by the acts of First Supplemental National Defense Appropriation Act, 1941, Public No. 667—76th Congress, approved June 26, 1940, and Second Supplemental National Defense Appropriation Act, 1941, Public No. 781—76th Congress, approved September 9, 1940.

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of Purchases and Contracts.

[F. R. Doc. 41-1661; Filed, March 6, 1941; 9:45 a. m.]

[Contract No. W 535 ac-17403 (4263)]

SUMMARY OF CONTRACT FOR SUPPLIES

CONTRACTOR: BEECH AIRCRAFT CORPORATION

Contract for: Airplanes, Spare Parts Therefor & Data (for the United States Navy).

Amount: $1,191,639.70.

Place: Material Division, Air Corps, U. S. Army, Wright Field, Dayton, Ohio.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in, and are chargeable to Procurement Authority AC 34 P 12-3037 A 0705-01, the available balance of which is sufficient to cover cost of same.

This Contract, entered into this 20th day of December 1940.

Scope of this contract. The contractor shall furnish and deliver to the Government * * * airplanes, spare parts and data, for the consideration stated not to exceed one million one hundred ninety one thousand six hundred thirty nine dollars seventy cents ($1,191,639.70), in strict accordance with the specifications, schedules and drawings, all of which are made a part hereof.

Changes. Where the supplies to be furnished are to be specially manufactured in accordance with drawings and specifications, the contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings or specifications, except Federal Specifications. Changes as to shipment and packing of all supplies may also be made as above provided.

Delays—Damages. If the contractor refuses or fails to make deliveries of the materials or supplies within the time specified in Article 1, or any extension thereof, the Government may by written notice terminate the right of the contractor to proceed with deliveries or such part or parts thereof as to which there has been delay.

Payments. The contractor shall be paid, upon submission of properly certified invoices or vouchers, the prices stipulated herein for articles delivered and accepted or services rendered, less deductions, if any, as herein provided. Unless otherwise specified, payments will be made on partial deliveries accepted by the Government when the amount due on such deliveries so warrants; or, when requested by the contractor, payments for accepted partial deliveries shall be made whenever such payments would equal or exceed either $1,000 or 50 per cent of the total amount of the contract.

Partial payments will be made as the work progresses at the end of each calendar month or as soon thereafter as practicable on authenticated statements of expenditures of the Contractor approved by the Contracting Officer.

Advance payments. Advance payments may be made from time to time for the supplies called for, when the Secretary of War deems such action necessary in the interest of the National Defense: *Provided however,* That the total amount of money so advanced shall not exceed * * * per centum of the contract price of the articles called for, and that such advance, if made, shall be upon such terms and conditions and with such adequate security as the Secretary of War shall prescribe.

Termination when Contractor not in default. If, in the opinion of the contracting officer upon the approval of the Secretary of War, the best interests of the Government so require, this contract may be terminated by the Government, even though the contractor be not in default, by a notice in writing relative thereto from the contracting officer to the contractor.

Title to property where partial payments are made. The title to all property upon which any partial payment is made prior to the completion of this contract shall vest in the Government.

Fire insurance. The contractor agrees to insure against fire all property in its possession upon which a partial payment is about to be made, such insurance to be in a sum at least equal to the amount of such payment plus all other partial payments, if any, theretofore made thereon, and further agrees to keep such property so insured, free of cost to the Government, until the same is delivered to the Government.

Price adjustment. The contract prices stated in this contract for airplanes and spare parts are subject to adjustments for changes in labor and material costs.

It is expressly agreed that quotas for labor will not be altered on account of delays in the completion of the airplanes and spare parts.

This contract authorized under the provisions of Section 1 (a), Act of July 2, 1940.

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of Purchases and Contracts.

[F. R. Doc. 41-1663; Filed, March 6, 1941; 9:46 a. m.]

NAVY DEPARTMENT.

[NOy-4446]

SUMMARY OF CONTRACT FOR CONSTRUCTION

CONTRACTORS: PUGET SOUND BRIDGE AND DREDGING COMPANY, 2929 16TH AVENUE, S. W., SEATTLE, WASHINGTON AND RUMSEY AND CO., 3821 AIRPORT WAY, SEATTLE, WASHINGTON

On October 31, 1940, the Navy Department entered into a contract (NOy-4446) with Puget Sound Bridge and Dredging Company and Rumsey and Co., both of Seattle, Washington, for the construction of Pier No. 3 complete with all necessary accessories at the Navy Yard, Puget Sound, Washington, at an estimated total cost of $2,000,000 including a fixed fee of $95,000 payable to the Contractors.

The contract, among other things, further provides that the Navy Department may at any time make changes in approved drawings and/or specifications and, if such changes or additions to or omissions from the original project cause a material increase or decrease in the amount or character of the work to be done under the contract, or in the time required for its performance, an equitable adjustment in the amount of the fixed fee to be paid to the Contractors shall be made and the contract shall be modified accordingly. The contract also contains provisions for the termination of the contract by the Government and for an equitable settlement with the Contractors under the contract in the case of such termination.

L. B. COMBS,
Acting Chief of Bureau.

[F. R. Doc. 41-1656; Filed, March 5, 1941; 3:24 p. m.]

[NOy-4444]

SUMMARY OF CONTRACT FOR CONSTRUCTION

CONTRACTORS: DAY AND ZIMMERMAN, INC., PACKARD BUILDING, PHILADELPHIA, PENNSYLVANIA

On November 4, 1940, the Navy Department entered into a contract (NOy-4444) with Day and Zimmerman, Inc., Philadelphia, Pennsylvania, for the construc-

tion of a reinforced concrete warehouse with all necessary utilities and accessories at the Marine Corps Depot of Supplies, Philadelphia, Pennsylvania, at an estimated total cost of $1,170,000, including a fixed fee of $50,000 payable to the Contractors.

The contract, among other things, further provides that the Navy Department may at any time make changes in approved drawings and/or specifications and, if such changes or additions to or omissions from the original project cause a material increase or decrease in the amount or character of the work to be done under the contract, or in the time required for its performance, an equitable adjustment in the amount of the fixed fee to be paid to the Contractors shall be made and the contract shall be modified accordingly. The contract also contains provisions for the termination of the contract by the Government and for an equitable settlement with the Contractors under the contract in the case of such termination.

L. B. COMBS,
Acting Chief of Bureau.

[F. R. Doc. 41-1655; Filed, March 5, 1941; 3:24 p. m.]

[NOy-4466]

SUMMARY OF CONTRACT FOR CONSTRUCTION

CONTRACTORS: WHITE CONSTRUCTION CO., INC., 95 MADISON AVENUE, NEW YORK, NEW YORK

On November 6, 1940, the Navy Department entered into a contract (NOy-4466) with White Construction Co., Inc., New York, New York, for the construction of receiving barracks and accessories at the Navy Yard, New York, New York, at an estimated total cost of $1,300,000, including a fixed fee of $57,000 payable to the Contractors.

The contract, among other things, further provides that the Navy Department may at any time make changes in approved drawings and/or specifications and, if such changes or additions to or omissions from the original project cause a material increase or decrease in the amount or character of the work to be done under the contract, or in the time required for its performance, an equitable adjustment in the amount of the fixed fee to be paid to the Contractors shall be made and the contract shall be modified accordingly. The contract also contains provisions for the termination of the contract by the Government and for an equitable settlement with the Contractors under the contract in the case of such termination.

L. B. COMBS,
Acting Chief of Bureau.

[F. R. Doc. 41-4466; Filed, March 5, 1941; 3:23 p. m.]

[NOy-4478]

SUMMARY OF CONTRACT FOR CONSTRUCTION

CONTRACTORS: CLINTON CONSTRUCTION COMPANY OF CALIFORNIA, 923 FOLSOM STREET, SAN FRANCISCO, CALIFORNIA

On November 12, 1940, the Navy Department entered into a contract (NOy-4478) with Clinton Construction Co., San Francisco, California, for the construction of aviation storage facilities at the Naval Supply Base, Oakland, California, at an estimated total cost of $1,800,000, including a fixed fee of $78,000 payable to the Contractors.

The contract, among other things, further provides that the Navy Department may at any time make changes in approved drawings and/or specifications and, if such changes or additions to or omissions from the original project cause a material increase or decrease in the amount or character of the work to be done under the contract, or in the time required for its performance, an equitable adjustment in the amount of the fixed fee to be paid to the Contractors shall be made and the contract shall be modified accordingly. The contract also contains provisions for the termination of the contract by the Government and for an equitable settlement with the Contractors under the contract in the case of such termination.

L. B. COMBS,
Acting Chief of Bureau.

[F. R. Doc. 41-1652; Filed, March 5, 1941; 3:23 p. m.]

[NOy-4488]

SUMMARY OF CONTRACT FOR CONSTRUCTION

CONTRACTORS: ENGSTROM & WYNN, 1117 CHAPLINE STREET, WHEELING, WEST VIRGINIA, AND J. A. J. CONSTRUCTION COMPANY, INC., 270 41ST STREET, BROOKLYN, NEW YORK

On November 18, 1940, the Navy Department entered into a contract (NOy-4488) with Engstrom & Wynn, Wheeling, West Virginia and J. A. J. Construction Company, Inc., Brooklyn, New York, for the construction of housing facilities at the Naval Ordnance Plant, South Charleston, West Virginia, at an estimated total cost of $1,527,000, including a fixed fee of $59,000 payable to the Contractors.

The contract, among other things, further provides that the Navy Department may at any time make changes in approved drawings and/or specifications and, if such changes or additions to or omissions from the original project cause a material increase or decrease in the amount or character of the work to be done under the contract, or in the time required for its performance, an equitable adjustment in the amount of the fixed fee to be paid to the Contractors shall be made and the contract shall be modified accordingly. The contract also contains provisions for the termination of the contract by the Government and for an equitable settlement with the Contractors under the contract in the case of such termination.

L. B. COMBS,
Acting Chief of Bureau.

[F. R. Doc. 41-1651; Filed, March 5, 1941; 3:23 p. m.]

[NOy-4630]

SUMMARY OF CONTRACT FOR CONSTRUCTION

CONTRACTORS: F. H. M'GRAW & CO., 780 WINDSOR STREET, HARTFORD, CONN., AND PURDY & HENDERSON CO., INC., 45 EAST 17TH STREET, NEW YORK, NEW YORK

FEBRUARY 17, 1941.

On February 15, 1941, the Navy Department entered into a contract (NOy-4630) with F. H. McGraw & Co. and Purdy & Henderson Co., Inc., of Hartford, Conn., and New York, New York, respectively for the construction of Aviation facilities at the Naval Air Station, Bermuda, at an estimated total cost of $9,150,000 including a fixed fee of $350,000 payable to the Contractors.

The contract, among other things, further provides that the Navy Department may at any time make changes in approved drawings and/or specifications and, if such changes or additions to or omissions from the original project cause a material increase or decrease in the amount or character of the work to be done under the contract, or in the time required for its performance, an equitable adjustment in the amount of the fixed fee to be paid to the Contractors shall be made and the contract shall be modified accordingly. The contract also contains provisions for the termination of the contract by the Government and for an equitable settlement with the Contractors under the contract in the case of such termination.

B. MOREELL,
Chief of Bureau.

[F. R. Doc. 41-1654; Filed, March 5, 1941; 3:23 p. m.]

Bureau of Ships.

[NOd-1692]

SUMMARY OF CONTRACT FOR CONSTRUCTION

CONTRACTOR: GENERAL MOTORS CORPORATION, CLEVELAND DIESEL ENGINE DIVISION, CLEVELAND, OHIO

FEBRUARY 28, 1941.

Under date of January 14, 1941, the Navy Department entered into a contract with General Motors Corporation, Cleve-

land Diesel Engine Division, for the construction of propelling machinery for twenty-eight (28) motor minesweepers, YMS1–28, inclusive, at a total contract price of $3,500,000, or a contract price of $125,000 per set of machinery.

The above mentioned contract contains provisions for the suspension, termination, and cancellation of the contract with an equitable basis for settlement in order to safeguard the Government's interests, should the public exigency require such action. In the event of termination due to the fault of the contractor, the Government may complete the construction of the machinery for the contractor's account.

The contract price is subject to adjustment for the net increase for changes separately in labor and material costs, for increases in cost due to the requirement of delivery earlier than the dates specified in the contract, for increases in cost due to approved overtime and/or shift work, and for changes in the plans and specifications, which may be ordered by the Navy Department during the course of construction.

S. M. ROBINSON,
Chief of Bureau.

[F. R. Doc. 41–1657; Filed, March 5, 1941; 3:24 p. m.]

DEPARTMENT OF THE INTERIOR.

Bituminous Coal Division.

[Docket No. A–196]

PETITION OF TUBE CITY COLLIERIES, INC., FOR A REDUCTION IN THE PRICE OF SIZE GROUP 10 (⅜" x 0 RAW SLACK) COAL PRODUCED AT ITS HUBBARD MINE (MINE INDEX NO. 93) IN DISTRICT NO. 2, FOR SHIPMENT INTO MARKET AREA 13, PURSUANT TO SECTION 4 II (d) OF THE BITUMINOUS COAL ACT OF 1937

NOTICE OF POSTPONEMENT OF HEARING

The petitioner has filed a motion that the hearing in the above-entitled proceeding be postponed until March 31, 1941; and

It appearing that there is no objection to said motion:

Now, therefore, it is ordered, That the hearing in the above-entitled matter originally scheduled for March 3, 1941, be, and it hereby is, postponed until 10 a. m., on March 31, 1941, at a hearing room of the Bituminous Coal Division, 734 Fifteenth Street NW., Washington, D. C. On such day the Chief of the Records Section, Room 502, will advise as to the room where such hearing will be held.

Dated: March 5, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41–1681; Filed, March 6, 1941; 11:26 a. m.]

[Docket No. A–591]

PETITION OF C. C. FAY, DOING BUSINESS AS FAY COLLIERIES COMPANY, FOR RELIEF RESPECTING RAILROAD FUEL FOR SHIPMENT TO THE PENNSYLVANIA RAILROAD, PURSUANT TO SECTION 4 II (d) OF THE BITUMINOUS COAL ACT OF 1937

ORDER OF DISMISSAL

Petitioner having requested the dismissal of its petition in the above matter, and there being no objection;

It is ordered, That the petition in this proceeding be dismissed.

Dated: March 5, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41–1684; Filed, March 6, 1941; 11:27 a. m.]

[Docket No. A–587]

PETITION OF HANNA COAL COMPANY OF OHIO, A PRODUCER IN DISTRICT NO. 4, FOR REVISION OF THE INSTRUCTION RELATING TO 4" x 1¼" EGG COAL SHIPPED AS RAILROAD FUEL, PURSUANT TO SECTION 4 II (d) OF THE BITUMINOUS COAL ACT OF 1937

ORDER POSTPONING HEARING

The original petitioner in the above-entitled matter having filed a motion requesting that the hearing thereon, heretofore scheduled for March 10, 1941, be postponed until March 19, 1941; and there being no objection to such motion

It is ordered, That the hearing upon the original petition in Docket No. A–587 be postponed until March 19, 1941, at 10 o'clock in the forenoon in a room to be designated by the Chief of the Records Section, 734 15th Street NW., Washington, D. C. In all other respects the original notice of and order for hearing shall remain in full force and effect.

Dated: March 5, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41–1682; Filed, March 6, 1941; 11:26 a. m.]

[Docket No. A–641]

PETITION OF PITTSBURGH COAL COMPANY, A PRODUCER IN DISTRICT 2, FOR REVISION OF THE EFFECTIVE MINIMUM PRICE OF COAL IN SIZE GROUP 10 WHEN SOLD FOR USE IN MARKET AREA 4

NOTICE OF AND ORDER FOR HEARING

A petition, pursuant to the Bituminous Coal Act of 1937, having been duly filed with this Division by the above-named party;

It is ordered, That a hearing in the above-entitled matter under the applicable provisions of said Act and the rules of the Division be held on April 2, 1941, at 10 o'clock in the forenoon of that day, at a hearing room of the Bituminous Coal Division, 734 Fifteenth Street NW., Washington, D. C. On such day the Chief of the Records Section in room 502 will advise as to the room where such hearing will be held.

It is further ordered, That Floyd McGown or any other officer or officers of the Division duly designated for that purpose shall preside at the hearing in such matter. The officers so designated to preside at such hearing are hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to all parties herein and to persons or entities having an interest in these proceedings and eligible to become a party herein. Any person desiring to be admitted as a party to this proceeding may file a petition of intervention in accordance with the rules and regulations of the Bituminous Coal Division for proceedings instituted pursuant to section 4 II (d) of the Act, setting forth the facts on the basis of which the relief in the original petition is supported or opposed or on the basis of which other relief is sought. Such petitions of intervention shall be filed with the Bituminous Coal Division on or before March 28, 1941.

All persons are hereby notified that the hearing in the above-entitled matter and any orders entered therein, may concern, in addition to the matters specifically alleged in the petition, other matters necessarily incidental and related thereto, which may be raised by amendment to the petition, petitions of interveners or otherwise, or which may be necessary corollaries to the relief, if any, granted on the basis of this petition.

The matter concerned herewith is in regard to a petition requesting that a differential of 15¢ per ton be established in favor of the petitioner's coals in Size Group 10 as against the class H coals in Size Group 5 of District 1 and the class DF and class F coals in Size Groups 9 and 10 of District 3 when sold for use in Market Area 4, whether shipped by rail or lake.

Dated: March 5, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41–1679; Filed, March 6, 1941; 11:25 a. m.]

[Docket No. A-677]

PETITION OF DISTRICT BOARD NO. 15 FOR REVISION OF THE PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR CERTAIN COALS OF THE MINES OF CODE MEMBERS IN PRODUCTION GROUP NO. 4 IN DISTRICT NO. 15 FOR ALL SHIPMENTS EXCEPT TRUCK TO MARKET AREA NO. 78

NOTICE OF AND ORDER FOR HEARING

A petition, pursuant to the Bituminous Coal Act of 1937, having been duly filed with this Division by the above-named party;

It is ordered, That a hearing in the above-entitled matter under the applicable provisions of said Act and the rules of the Division be held on March 24, 1941, at 10 o'clock in the forenoon of that day, at a hearing room of the Bituminous Coal Division, 734 Fifteenth Street NW., Washington, D. C. On such day the Chief of the Records Section in room 502 will advise as to the room where such hearing will be held.

It is further ordered, That D. C. McCurtain or any other officer or officers of the Division duly designated for that purpose shall preside at the hearing in such matter. The officers so designated to preside at such hearing are hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to all parties herein and to persons or entities having an interest in these proceedings and eligible to become a party herein. Any person desiring to be admitted as a party to this proceeding may file a petition of intervention in accordance with the rules and regulations of the Bituminous Coal Division for proceedings instituted pursuant to section 4 II (d) of the Act, setting forth the facts on the basis of which the relief in the original petition is supported or opposed or on the basis of which other relief is sought. Such petitions of intervention shall be filed with the Bituminous Coal Division on or before March 19, 1941.

All persons are hereby notified that the hearing in the above-entitled matter and any orders entered therein, may concern, in addition to the matters specifically alleged in the petition, other matters necessarily incidental and related thereto, which may be raised by amendment to the petition, petitions of interveners or otherwise, or which may be necessary corollaries to the relief, if any, granted on the basis of this petition.

The matter concerned herewith is in regard to the petition of District Board No. 15 for revision of the price classifications and minimum prices for certain coals of the mines of code members in Production Group No. 4 in District No. 15 for all shipments except truck to Market Area No. 78.

Dated: March 5, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1676; Filed, March 6, 1941; 11:24 a. m.]

[Docket No. A-685]

PETITION OF TRUAX-TRAER COAL COMPANY, A CODE MEMBER PRODUCER IN DISTRICT NO. 8, FOR A REDUCTION IN PRICE OF ITS DOROTHY COAL IN SIZE GROUP 24 (WATER-GAS) FOR SHIPMENT TO MARKET AREA 99, OR FOR CONSUMPTION BY MINNEAPOLIS GAS LIGHT COMPANY

NOTICE OF AND ORDER FOR HEARING

A petition, pursuant to the Bituminous Coal Act of 1937, having been duly filed with this Division by the above-named party;

It is ordered, That a hearing in the above-entitled matter under the applicable provisions of said Act and the rules of the Division be held on March 21, 1941, at 10 o'clock in the forenoon of that day, at a hearing room of the Bituminous Coal Division, 734 Fifteenth Street NW., Washington, D. C. On such day the Chief of the Records Section in room 502 will advise as to the room where such hearing will be held.

It is further ordered, That Travis Williams or any other officer or officers of the Division duly designated for that purpose shall preside at the hearing in such matter. The officers so designated to preside at such hearing are hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to all parties herein and to persons or entities having an interest in these proceedings and eligible to become a party herein. Any person desiring to be admitted as a party to this proceeding may file a petition of intervention in accordance with the rules and regulations of the Bituminous Coal Division for proceedings instituted pursuant to section 4 II (d) of the Act, setting forth the facts on the basis of which the relief in the original petition is supported or opposed or on the basis of which other relief is sought. Such petitions of intervention shall be filed with the Bituminous Coal Division on or before March 17, 1941.

All persons are hereby notified that the hearing in the above-entitled matter and any orders entered therein, may concern, in addition to the matters specifically alleged in the petition, other matters necessarily incidental and related thereto, which may be raised by amendment to the petition, petitions of interveners or otherwise, or which may be necessary corollaries to the relief, if any, granted on the basis of this petition.

The matter concerned herewith is in regard to the petition of Truax-Traer Coal Company, a code member producer in District No. 8, requesting a reduction of 10 cents per ton in the minimum price of its Dorothy coal in Size Group 24 (Water-Gas) for shipment to Market Area 99, or for consumption by the Minneapolis Gas Light Company.

Dated: March 5, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1678; Filed, March 6, 1941; 11:25 a. m.]

[Docket No. A-689]

PETITION OF DISTRICT BOARD NO. 8 FOR ORDER OF CHANGE IN ESTABLISHED MINIMUM PRICES UPON ON-LINE RAILWAY LOCOMOTIVE FUEL SOLD BY MINES WITHIN FREIGHT ORIGIN GROUP NO. 128

NOTICE OF AND ORDER FOR HEARING

A petition, pursuant to the Bituminous Coal Act of 1937, having been duly filed with this Division by the above-named party;

It is ordered, That a hearing in the above-entitled matter under the applicable provisions of said Act and the rules of the Division be held on March 25, 1941, at 10 o'clock in the forenoon of that day, at a hearing room of the Bituminous Coal Division, 734 Fifteenth Street NW., Washington, D. C. On such day the Chief of the Records Section in room 502 will advise as to the room where such hearing will be held.

It is further ordered, That W. A. Shipman or any other officer or officers of the Division duly designated for that purpose shall preside at the hearing in such matter. The officers so designated to preside at such hearing are hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to all parties herein and to persons or

entities having an interest in these proceedings and eligible to become a party herein. Any person desiring to be admitted as a party to this proceeding may file a petition of intervention in accordance with the rules and regulations of the Bituminous Coal Division for proceedings instituted pursuant to section 4 II (d) of the Act, setting forth the facts on the basis of which the relief in the original petition is supported or opposed or on the basis of which other relief is sought. Such petitions of intervention shall be filed with the Bituminous Coal Division on or before March 21, 1941.

All persons are hereby notified that the hearing in the above-entitled matter and any orders entered therein, may concern, in addition to the matters specifically alleged in the petition, other matters necessarily incidental and related thereto, which may be raised by amendment to the petition, petitions of interveners or otherwise, or which may be necessary corollaries to the relief, if any, granted on the basis of this petition.

The matter concerned herewith is in regard to the petition of District Board No. 8 for an order modifying the provision of Price Schedule No. 1—District No. 8—*High Volatile Section IV—Special Prices*—A. *Railway Locomotive Fuel*—1. *For On-Line Railways*—(c) *Exceptions to On-Line Railway Locomotive Fuel Prices* to the effect that code members producing coal from mines located on the line of Winifrede Railroad may sell such coal originating thereon to Chesapeake & Ohio Railway as locomotive fuel at a net price not less than the applicable railway locomotive fuel price less a deduction of not to exceed 30 cents per net ton. At the present time, a deduction of no more than 15 cents per net ton may be made.

Dated: March 5, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1680; Filed, March 6, 1941; 11:25 a. m.]

[Docket No. A-704]

PETITION OF DISTRICT BOARD NO. 7 FOR THE ESTABLISHMENT OF PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR SHIPMENT BY TRUCK OF CERTAIN COALS OF CERTAIN MINES OF THE NEW RIVER COMPANY, A CODE MEMBER IN DISTRICT NO. 7, PURSUANT TO SECTION 4 II (d) OF THE BITUMINOUS COAL ACT OF 1937

NOTICE OF AND ORDER FOR HEARING

A petition, pursuant to the Bituminous Coal Act of 1937, having been duly filed with this Division by the above-named party;

It is ordered, That a hearing in the above-entitled matter under the applicable provisions of said Act and the rules of the Division be held on March 26, 1941, at 10 o'clock in the forenoon of that day, at a hearing room of the Bituminous Coal Division, 734 Fifteenth Street NW., Washington, D. C. On such day the Chief of the Records Section in room 502 will advise as to the room where such hearing will be held.

It is further ordered, That Travis Williams or any other officer or officers of the Division duly designated for that purpose shall preside at the hearing in such matter. The officers so designated to preside at such hearings are hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to all parties herein and to persons or entities having an interest in these proceedings and eligible to become a party herein. Any person desiring to be admitted as a party to this proceeding may file a petition of intervention in accordance with the rules and regulations of the Bituminous Coal Division for proceedings instituted pursuant to section 4 II (d) of the Act, setting forth the facts on the basis of which the relief in the original petition is supported or opposed or on the basis of which other relief is sought. Such petitions of intervention shall be filed with the Bituminous Coal Division on or before March 21, 1941.

All persons are hereby notified that the hearing in the above-entitled matter and any orders entered therein, may concern, in addition to the matters specifically alleged in the petition, other matters necessarily incidental and related thereto, which may be raised by amendment to the petition, petitions of interveners or otherwise, or which may be necessary corollaries to the relief, if any, granted on the basis of this petition.

The matter concerned herewith is in regard to the petition of District Board No. 7 for the establishment of price classifications and minimum prices for shipment by truck of certain coals, termed "refuse fuel," of Mine Index Nos. 45, 77, 105, 132, 135, 154, 167, 170, 179, 180, and 202 of the New River Company, a code member in District No. 7.

Dated: March 5, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1677; Filed, March 6, 1941; 11:24 a. m.]

[Docket No. A-705]

PETITION OF DISTRICT BOARD NO. 7 FOR REVISION OF THE PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR THE COALS IN SIZE GROUPS 8, 9, AND 10 OF MINE INDEX NO. 525 OF THE CHARMCO SMOKELESS COAL COMPANY, INC., A CODE MEMBER IN DISTRICT NO. 7, PURSUANT TO SECTION 4 II (d) OF THE BITUMINOUS COAL ACT OF 1937

NOTICE OF AND ORDER FOR HEARING

A petition, pursuant to the Bituminous Coal Act of 1937, having been duly filed with this Division by the above-named party;

It is ordered, That a hearing in the above-entitled matter under the applicable provisions of said Act and the rules of the Division be held on March 27, 1941, at 10 o'clock in the forenoon of that day, at a hearing room of the Bituminous Coal Division, 734 Fifteenth Street NW., Washington, D. C. On such day the Chief of the Records Section in room 502 will advise as to the room where such hearing will be held.

It is further ordered, That Travis Williams or any other officer or officers of the Division duly designated for that purpose shall preside at the hearing in such matter. The officers so designated to preside at such hearing are hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to all parties herein and to persons or entities having an interest in these proceedings and eligible to become a party herein. Any person desiring to be admitted as a party to this proceeding may file a petition of intervention in accordance with the rules and regulations of the Bituminous Coal Division for proceedings instituted pursuant to Section 4 II (d) of the Act, setting forth the facts on the basis of which the relief in the original petition is supported or opposed or on the basis of which other relief is sought. Such petitions of intervention shall be filed with the Bituminous Coal Division on or before March 22, 1941.

All persons are hereby notified that the hearing in the above-entitled matter and any orders entered therein, may concern, in addition to the matters specifically alleged in the petition, other matters necessarily incidental and related thereto, which may be raised by amendment to the petition, petitions of interveners or otherwise, or which may be necessary corollaries to the relief, if any, granted on the basis of this petition.

The matter concerned herewith is in regard to the petition of District Board No. 7 for a change from "A" to "B" in the price classifications and a corresponding change in the minimum prices for the coals in Size Groups 8, 9, and 10 of Mine Index No. 525 of the Charmco

Smokeless Coal Company, Inc., a code member in District No. 7.

Dated: March 5, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1675; Filed, March 6, 1941; 11:24 a. m.]

[Docket No. 1464-FD]

APPLICATION OF BLUE BIRD COAL COMPANY FOR EXEMPTION UNDER THE SECOND PARAGRAPH OF SECTION 4-A OF THE BITUMINOUS COAL ACT OF 1937

CORRECTION OF TYPOGRAPHICAL ERROR

The Order of Dismissal,[1] issued by me on February 14, 1941, in the above entitled matter, second paragraph, first sentence, third line, inadvertently referred to a "voluntary bankruptcy proceeding pending before the United States Supreme Court for the Eastern District of Illinois;" whereas such proceeding is "pending before the United States District Court for the Eastern District of Illinois;"

It is ordered, That said Order be amended and corrected to read accordingly.

Dated: March 5, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1685; Filed, March 6, 1941; 11:27 a. m.]

[Docket No. A-493]

PETITION OF DISTRICT BOARD NO. 15 FOR PERMISSION TO CODE MEMBERS IN PRODUCTION GROUPS NOS. 7, 8, 10 AND 11 IN DISTRICT NO. 15 TO CONTRACT FOR DELIVERY OF THEIR 1¼" x 0 SCREENINGS TO THE HORSESHOE LAKE PLANT OF THE OKLAHOMA GAS AND ELECTRIC COMPANY AT HARRAH, OKLAHOMA, THROUGHOUT THE PERIOD TO MARCH 31, 1945, PURSUANT TO SECTION 4 II (d) OF THE BITUMINOUS COAL ACT OF 1937

[Docket No. A-523]

PETITION OF DISTRICT BOARD NO. 14 FOR PERMISSION TO CODE MEMBERS IN PRODUCTION GROUPS NOS. 2, 3, 6, 7, 8 AND 9 IN DISTRICT NO. 14 TO CONTRACT FOR DELIVERY OF THEIR 1¼" x 0 SCREENINGS TO THE HORSESHOE LAKE PLANT OF THE OKLAHOMA GAS AND ELECTRIC COMPANY AT HARRAH, OKLAHOMA, THROUGHOUT THE PERIOD TO MARCH 31, 1945, PURSUANT TO SECTION 4 II (d) OF THE BITUMINOUS COAL ACT OF 1937

ORDER OF CONSOLIDATION AND NOTICE OF AND ORDER FOR HEARING

Petitions, pursuant to the Bituminous Coal Act of 1937, having been duly filed with this Division by the above-named parties, and it appearing that the issues therein raised are analogous;

It is ordered, That the above-entitled matters, be and they hereby are consolidated for the purpose of hearing and for such other purposes as the officer designated to preside at such hearing may deem appropriate.

It is further ordered, That a hearing in the above-entitled matters under the applicable provisions of said Act and the rules of the Division be held on March 25, 1941, at 10 o'clock in the forenoon of that day, at a hearing room of the Bituminous Coal Division, 734 Fifteenth Street NW., Washington, D. C. On such day the Chief of the Records Section in Room 502 will advise as to the room where such hearing will be held.

It is further ordered, That W. A. Shipman or any other officer or officers of the Division duly designated for that purpose shall preside at the hearing in such matters. The officers so designated to preside at such hearing are hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to all parties herein and to persons or entities having an interest in these proceedings and eligible to become a party herein. Any person desiring to be admitted as a party to this proceeding may file a petition of intervention in accordance with the rules and regulations of the Bituminous Coal Division for proceedings instituted pursuant to section 4 II (d) of the Act, setting forth the facts on the basis of which the relief in the original petitions is supported or opposed or on the basis of which other relief is sought. Such petitions of intervention shall be filed with the Bituminous Coal Division on or before March 20, 1941.

All persons are hereby notified that the hearing in the above-entitled matters and any orders entered therein, may concern, in addition to the matters specifically alleged in the petitions, other matters necessarily incidental and related thereto, which may be raised by amendment to the petitions, petitions of interveners or otherwise, or which may be necessary corollaries to the relief, if any, granted on the basis of the petitions.

The matters concerned herewith are in regard to the petitions of District Boards Nos. 15 and 14 for permission to code members in Production Groups Nos. 7, 8, 10 and 11 in District No. 15 and Production Groups Nos. 2, 3, 6, 7, 8 and 9 in District No. 14 to contract for delivery of their 1¼" x 0 screenings to the Horseshoe Lake Plant of the Oklahoma Gas and Electric Company at Harrah, Oklahoma, throughout the period to March 31, 1945.

Dated: March 6, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1683; Filed, March 6, 1941; 11:26 a. m.]

DEPARTMENT OF LABOR.

Wage and Hour Division.

[Administrative Order No. 89]

AUTHORIZATION OF HAROLD D. JACOBS TO ACT ON THE AFTERNOON OF MARCH 6 AND ON MARCH 7, 1941 IN THE ABSENCE OF THE ADMINISTRATOR, THE DEPUTY ADMINISTRATOR AND THE ASSISTANT TO THE ADMINISTRATOR

By virtue of and pursuant to the authority vested in me by the Fair Labor Standards Act of 1938, I, Philip B. Fleming, Administrator of the Wage and Hour Division, Department of Labor,

Do hereby authorize Harold D. Jacobs, Assistant Administrator, in charge of the Information Branch, to act as Administrator and to exercise any or all of the powers of the Administrator under the Fair Labor Standards Act of 1938, on the afternoon of March 6 and on March 7, 1941, in the absence of the Administrator, the Deputy Administrator and the Assistant to the Administrator.

This order shall be effective as of March 6, 1941.

Signed at Washington, D. C., this 6th day of March, 1941.

PHILIP B. FLEMING,
Administrator.

[F. R. Doc. 41-1696; Filed, March 6, 1941; 11:44 a. m]

NOTICE OF CHANGE OF DATE OF ORAL ARGUMENT BEFORE THE ADMINISTRATOR ON THE RECOMMENDATIONS OF INDUSTRY COMMITTEE NO. 17 FOR MINIMUM WAGES IN THE JEWELRY MANUFACTURING INDUSTRY

Whereas the notice of oral argument upon the record of the hearing on the recommendations of Industry Committee No. 17 for minimum wages in the Jewelry Manufacturing Industry (Wage and Hour Division release R-1280) provided that the Administrator of the Wage and Hour Division would hear oral argument upon the record of the hearing on said recommendations to commence on March 13, 1941, at 10 a. m. in Room 3229, Department of Labor Building, Washington, D. C.; and

Whereas it now appears appropriate to change the date of said hearing;

Now, therefore, notice is hereby given:

That oral argument upon the complete record of the hearing on the recommendations of Industry Committee No. 17 for minimum wages in the Jewelry Manufacturing Industry is changed to com-

[1] 6 F.R. 1040.

mence on March 19, 1941, at 10 a. m. in Room 3229, Department of Labor Building, 14th Street and Constitution Avenue, Washington, D. C., before the Administrator of the Wage and Hour Division, and oral argument may be presented by any person who entered an appearance at the public hearing held on these recommendations, provided that on or before March 12, 1941 such person informs the Wage and Hour Division of his intention to offer oral argument and of the amount of time he will require to make his presentation.

Signed at Washington, D. C., this 6th day of March, 1941.

PHILIP B. FLEMING,
Administrator.

[F. R. Doc. 41-1695; Filed, March 6, 1941; 11:44 a. m.]

FEDERAL COMMUNICATIONS COMMISSION.

[Docket No. 5958]

APPLICATION OF R. B. TERRY, D. A. RAWLEY, C. M. WAYNICK, & H. A. CECIL, D/B AS HIGH POINT BROADCASTING CO. (NEW)

NOTICE OF HEARING

Application dated August 29, 1939, for construction permit; class of service, broadcast; class of station, broadcast; location, High Point, N. C.; operating assignment specified: Frequency, 1,370 kc.; power, 100 watts; hours of operation, unlimited.

You are hereby notified that the Commission has examined the above described application and has designated the matter for hearing for the following reasons:

1. To determine whether a grant would serve public interest, convenience, or necessity, in view of the fact that the members of the applicant partnership own, publish, and edit the only daily newspaper in High Point, North Carolina.

2. To determine whether the granting of the instant application would better serve public interest, convenience, or necessity than the granting of the application (B3-P-2808) of Ralph L. Lewis for a permit to construct a new standard broadcast station in Greensboro, North Carolina, to operate on 1,370 kc., 100 w., unlimited time.

The application involved herein will not be granted by the Commission unless the issues listed above are determined in favor of the applicant on the basis of a record duly and properly made by means of a formal hearing.

The applicant is hereby given the opportunity to obtain a hearing on such issues by filing a written appearance in accordance with the provisions of § 1.382 (b) of the Commission's Rules of Practice and Procedure. Persons other than the applicant who desire to be heard must file a petition to intervene in accordance with the provisions of § 1.102 of the Commission's Rules of Practice and Procedure.

The applicant's address is as follows:

R. B. Terry, D. A. Rawley, C. M. Waynick & H. A. Cecil, d/b as High Point Broadcasting Co., % R. B. Terry, High Point, North Carolina.

Dated at Washington, D. C. March 5, 1941.

By the Commission.

[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 41-1686; Filed, March 6, 1941; 11:31 a. m.]

[Docket No. 6017]

APPLICATION OF RALPH L. LEWIS (NEW)

NOTICE OF HEARING

Application dated March 11, 1940, for construction permit; class of service, broadcast; class of station, broadcast; location, Greensboro, N. C.; operating assignment specified: Frequency, 1,370 kc.; power, 100 watts; hours of operation, unlimited.

You are hereby notified that the Commission has examined the above described application and has designated the matter for hearing for the following reasons:

1. To determine the qualifications of the applicant to operate the proposed station in the public interest.

2. To determine the extent to which the applicant will maintain control of the station, its equipment, and operation, including supervision of the programs to be broadcast.

3. To determine the extent to which persons other than the applicant have or will have interests in the proposed station.

4. To determine the extent to which the applicant will participate personally in the management and operation of the proposed station.

5. To determine whether the granting of the instant application would better serve public interest, convenience, or necessity than the granting of the application (B3-P-2491, Docket No. 5958) of the High Point Broadcasting Company for a permit to construct a new standard broadcast station in High Point, North Carolina, to operate on 1,370 kilocycles, 100 watts, unlimited time.

The application involved herein will not be granted by the Commission unless the issues listed above are determined in favor of the applicant on the basis of a record duly and properly made by means of a formal hearing.

The applicant is hereby given the opportunity to obtain a hearing on such issues by filing a written appearance in accordance with the provisions of § 1.382 (b) of the Commission's Rules of Practice and Procedure. Persons other than the applicant who desire to be heard must file a petition to intervene in accordance with the provisions of § 1.102 of the Commission's Rules of Practice and Procedure.

The applicant's address is as follows:

Ralph L. Lewis, % Lewis and Stevens, P. O. Box 1379, Greensboro, North Carolina.

Dated at Washington, D. C., March 5, 1941.

By the Commission.

[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 41-1687; Filed, March 6, 1941; 11:31 a. m.]

[Docket No. 6019]

APPLICATION OF WAYNE M. NELSON (NEW)

NOTICE OF HEARING

Application dated October 23, 1940, for construction permit; class of service, broadcast; class of station, broadcast; location, Concord, N. C.; operating assignment specified: Frequency, 1380 kc.; power, 1 kw.; hours of operation, daytime.

You are hereby notified that the Commission has examined the above described application and has designated the matter for hearing for the following reasons:

1. To determine, in the light of his past activities and experience as a broadcaster, whether the applicant is qualified to construct and operate a station in the public interest.

2. To obtain full information with respect to the applicant's activities in acquiring and disposing of interests in radio station permits and licenses.

3. To determine the character of the service, both technical and program, which the applicant may be expected to render if authorized to construct and operate the proposed station.

4. To determine whether the assignment of the frequency applied for by the applicant would be consistent with good engineering practice and would tend toward an equitable distribution of broadcast facilities, as contemplated by section 307 of the Communications Act of 1934, as amended.

5. To determine whether, in view of the facts found by determination of the foregoing issues, a grant would serve public interest, convenience, or necessity.

The application involved herein will not be granted by the Commission unless the issues listed above are determined in favor of the applicant on the basis of a record duly and properly made by means of a formal hearing.

The applicant is hereby given the opportunity to obtain a hearing on such issues by filing a written appearance in accordance with the provisions of § 1.382 (b) of the Commission's Rules of Practice

and Procedure. Persons other than the applicant who desire to be heard must file a petition to intervene in accordance with the provisions of § 1.102 of the Commission's Rules of Practice and Procedure.

The applicant's address is as follows:

Wayne M. Nelson, P. O. Box 567, High Point, North Carolina.

Dated at Washington, D. C., March 5, 1941.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 41-1688; Filed, March 6, 1941; 11:31 a. m.]

[Docket No. 6024]

APPLICATION OF COLUMBIA BROADCASTING SYSTEM, INC. (NEW)

NOTICE OF HEARING

Application dated December 2, 1940; for construction permit; class of service, high frequency broadcast; class of station, high frequency broadcast; location, Boston, Massachusetts; operating assignment specified: Frequency, 44,100 kcs.; coverage, 16,230 sq. mi.; hours of operation, unlimited.

You are hereby notified that the Commission has examined the above described application and has designated the matter for hearing for the following reasons:

1. To determine the area and population which would be included within the service area of the proposed station, operating as proposed in the application.

2. To determine whether the characteristics (social, cultural, or economic) of the proposed service area are substantially different from service areas as defined in subsection (a), (b), or (c) of § 3.223 of the Commission's Rules and Regulations, and whether by reason of special conditions there is a need for the proposed service both program and technical which cannot be supplied by a station or stations with service areas such as contemplated under subsections (a), (b), or (c) of § 3.223.

3. To determine what effect operation of the proposed station with a service area as applied for would have with respect to competition between radio stations, and to determine whether the proposed station would have competitive advantages over other stations.

4. To determine the nature and effect of any interference which operation of the proposed station would cause to the service of Station W39B and the nature and effect of any interference to the proposed station by the operation of Station W39B.

5. To determine whether the technical equipment proposed to be used, location of transmitter and other technical phases of the proposed construction, comply with Commission regulations with respect to the same and the requirements of Good Engineering Practice.

6. To determine whether the granting of the application with an operating assignment and service area as applied for would tend toward a fair, efficient and equitable distribution of radio service among the several states and communities as contemplated by section 307 (b) of the Communications Act of 1934, as amended.

7. To determine the nature and character of the service which applicant may be expected to provide if granted a permit.

8. To determine whether the granting of the application with service area as proposed therein would be consistent with Commission's Rules and Regulations, particularly § 3.223.

9. To determine whether under the facts disclosed by the determination of the foregoing issues public convenience, interest or necessity will be served by granting the application.

The application involved herein will not be granted by the Commission unless the issues listed above are determined in favor of the applicant on the basis of a record duly and properly made by means of a formal hearing.

The applicant is hereby given the opportunity to obtain a hearing on such issues by filing a written appearance in accordance with the provisions of § 1.382 (b) of the Commission's Rules of Practice and Procedure. Persons other than the applicant who desire to be heard must file a petition to intervene in accordance with the provisions of § 1.102 of the Commission's Rules of Practice and Procedure.

The applicant's address is as follows:

Columbia Broadcasting System, Inc., % Mr. Kenneth E. Raine, 485 Madison Avenue, New York, New York.

Dated at Washington, D. C., March 5, 1941.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 41-1689; Filed, March 6, 1941; 11:31 a. m.]

FEDERAL TRADE COMMISSION

[Docket No. 4325]

IN THE MATTER OF MOTOR TIRE RETREAD COMPANY, INC., A CORPORATION; BENJAMIN DUCHEN, LILLIAN HOLLOWICH, AND JOHN M. WEINER, INDIVIDUALLY, AND AS OFFICERS AND DIRECTORS OF MOTOR TIRE RETREAD COMPANY, INC.; ALSO TRADING AS NATION WIDE TIRE COMPANY, CENTRAL TIRE AND RETREADING EXCHANGE, STANDARD BRAND RETREAD TIRE COMPANY, ZEPHYR TIRE COMPANY, AND RETREAD TIRE DISTRIBUTORS

ORDER APPOINTING TRIAL EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 4th day of March, A. D. 1941.

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U.S.C.A. section 41),

It is ordered, That Miles J. Furnas, a trial examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Thursday, March 27, 1941, at ten o'clock in the forenoon of that day (central standard time) in Room 1123, New Post Office Building, 433 West Van Buren Street, Chicago, Illinois.

Upon completion of testimony for the Federal Trade Commission, the trial examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The trial examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 41-1673; Filed, March 6, 1941; 11:21 a. m.]

[Docket No. 4463]

IN THE MATTER OF GRAND RAPIDS FURNITURE CO., INC., A CORPORATION

ORDER APPOINTING TRIAL EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 4th day of March, A. D. 1941.

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U.S.C.A., section 41),

It is ordered, That Miles J. Furnas, a trial examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered, That the taking of testimony in this proceeding begin on Tuesday, March 18, 1941, at ten o'clock in the forenoon of that day (eastern standard time) in Room 500, 45 Broadway, New York, New York.

Upon completion of testimony for the Federal Trade Commission, the trial examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The trial examiner will then close the case and make his report upon the evidence.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 41-1674; Filed, March 6, 1941; 11:21 a. m.]

SECURITIES AND EXCHANGE COMMISSION.

[File No. 1-414]

IN THE MATTER OF AUTOMOBILE FINANCE COMPANY

ORDER SETTING HEARING ON APPLICATION TO WITHDRAW FROM LISTING AND REGISTRATION

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 5th day of March, A. D. 1941.

The Automobile Finance Company, pursuant to section 12 (d) of the Securities Exchange Act of 1934, as amended, and Rule X-12D2-1 (b) promulgated thereunder, having made application to the Commission to withdraw its $25 Par Value 7% Cumulative Preferred Stock and its $1 Par Value Common Stock from listing and registration on the Pittsburgh Stock Exchange; and

The Commission deeming it necessary for the protection of investors that a hearing be held in this matter at which all interested persons be given an opportunity to be heard;

It is ordered, That the matter be set down for hearing at 10 A. M. on Wednesday, March 26, 1941, at the office of the Securities & Exchange Commission, 120 Broadway, New York City, and continue thereafter at such times and places as the Commission or its officer herein designated shall determine, and that general notice thereof be given; and

It is further ordered, That Adrian C. Humphreys, an officer of the Commission, be and he hereby is designated to administer oaths and affirmations, subpoena witnesses, compel their attendance, take evidence, and require the production of any books, papers, correspondence, memoranda or other records deemed relevant or material to the inquiry, and to perform all other duties in connection therewith authorized by law.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 41-1670; Filed, March 6, 1941; 11:18 a. m.[

[File No. 1-2125]

IN THE MATTER OF WABASH RAILWAY COMPANY, WABASH RAILROAD COMPANY 6% DEBENTURE BONDS, SERIES "B," DUE JULY 1, 1939

ORDER SETTING HEARING ON APPLICATION TO STRIKE FROM LISTING AND REGISTRATION

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 5th day of March, A. D. 1941.

The New York Stock Exchange, pursuant to section 12 (d) of the Securities Exchange Act of 1934, as amended, and Rule X-12D2-1 (b) promulgated thereunder, having made application to strike from listing and registration the Wabash Railroad Company 6% Debenture Bonds, Series "B," due July 1, 1939, of Wabash Railway Company; and

The Commission deeming it necessary for the protection of investors that a hearing be held in this matter at which all interested persons be given an opportunity to be heard;

It is ordered, That the matter be set down for hearing at 10 A. M. on Tuesday, March 25, 1941 at the office of the Securities & Exchange Commission, 120 Broadway, New York City, and continue thereafter at such times and places as the Commission or its officer herein designated shall determine, and that general notice thereof be given; and

It is further ordered, That Adrian C. Humphreys, an officer of the Commission, be and he hereby is designated to administer oaths and affirmations, subpoena witnesses, compel their attendance, take evidence, and require the production of any books, papers, correspondence, memoranda or other records deemed relevant or material to the inquiry, and to perform all other duties in connection therewith authorized by law.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 41-1669; Filed, March 6, 1941; 11:18 a. m.]

[File No. 1-2992]

IN THE MATTER OF THE ELK HORN COAL CORPORATION COMMON STOCK, NO PAR VALUE

ORDER SETTING HEARING ON APPLICATION TO STRIKE FROM LISTING AND REGISTRATION

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 5th day of March, A. D., 1941.

The New York Stock Exchange, pursuant to section 12 (d) of the Securities Exchange Act of 1934, as amended, and Rule X-12D2-1 (b) promulgated thereunder, having made application to strike from listing and registration the Common Stock, No Par Value, of The Elk Horn Coal Corporation; and

The Commission deeming it necessary for the protection of investors that a hearing be held in this matter at which all interested persons be given an opportunity to be heard;

It is ordered, That the matter be set down for hearing at 10 A. M. on Wednesday, April 2, 1941, at the office of the Securities & Exchange Commission, 120 Broadway, New York City, and continue thereafter at such times and places as the Commission or its officer herein designated shall determine, and that general notice thereof be given; and

It is further ordered, That Adrian C. Humphreys, an officer of the Commission, be and he hereby is designated to administer oaths and affirmations, subpoena witnesses, compel their attendance, take evidence, and require the production of any books, papers, correspondence, memoranda or other records deemed relevant or material to the inquiry, and to perform all other duties in connection therewith authorized by law.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 41-1671; Filed, March 6, 1941; 11:18 a. m.]

[File Nos. 7-461 to 7-464]

IN THE MATTER OF APPLICATIONS BY THE SEATTLE STOCK EXCHANGE FOR UNLISTED TRADING PRIVILEGES IN PUGET SOUND PULP AND TIMBER COMPANY COMMON STOCK, NO PAR VALUE; 6% CUMULATIVE PREFERRED STOCK, $20 PAR VALUE; PUGET SOUND POWER AND LIGHT COMPANY $5 CUMULATIVE PRIOR PREFERENCE STOCK, NO PAR VALUE; 5½% FIRST AND REFUNDING MORTGAGE GOLD BONDS, SERIES "A", DUE 1949; 5% FIRST AND REFUNDING MORTGAGE GOLD BONDS, SERIES "C", DUE 1950; 4½% FIRST AND REFUNDING MORTGAGE GOLD BONDS, SERIES "D", DUE 1950; RAYONIER INCORPORATED COMMON STOCK, $1 PAR VALUE; $2 CUMULATIVE PREFERRED STOCK, $25 PAR VALUE; SOUNDVIEW PULP COMPANY COMMON STOCK, $5 PAR VALUE; 6% CUMULATIVE PREFERRED STOCK, $100 PAR VALUE

ORDER DISPOSING OF APPLICATIONS FOR PERMISSION TO EXTEND UNLISTED TRADING PRIVILEGES

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 5th day of March 1941.

The Seattle Stock Exchange, having made application to the Commission for permission to extend unlisted trading privileges to the above-mentioned securities in accordance with a condition granting said exchange exemption from registration as a national securities exchange, and pursuant to the requirements of section 12 (f) of the Securities Exchange Act of 1934; and

After appropriate notice, a hearing having been held in this matter in Seattle, Washington; and

The Commission having this day made and filed its findings and opinion herein:

It is ordered, That the applications of the Seattle Stock Exchange for permission to extend unlisted trading privileges to the following securities:

Puget Sound Power and Light Company $5 Cumulative Prior Preference Stock, No Par Value.

5½% First and Refunding Mortgage Gold Bonds, Series "A", due 1949.

5% First and Refunding Mortgage Gold Bonds, Series "C", due 1950.

4½% First and Refunding Mortgage Gold Bonds, Series "D", due 1950.

be and the same hereby are denied for the reason more fully set forth in the findings and opinion of the Commission issued herein this day;

It is further ordered, That the applications of the Seattle Stock Exchange for permission to extend unlisted trading privileges to the following securities:

Puget Sound Pulp and Timber Company Common Stock, No Par Value.

6% Cumulative Preferred Stock, $20 Par Value.

Rayonier Incorporated Common Stock, $1 Par Value.

$2 Cumulative Preferred Stock, $25 Par Value.

Soundview Pulp Company Common Stock, $5 Par Value.

6% Cumulative Preferred Stock, $100 Par Value.

be and the same hereby are denied without prejudice to any subsequent applications which may be filed for permission to extend unlisted trading privileges to these same securities based upon amendments to the rules of the exchange as more fully set forth in the findings and opinion of the Commission issued herein this day.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 41-1668; Filed, March 6, 1941; 11:18 a. m.]

[File No. 70-207]

IN THE MATTER OF THE COMMONWEALTH & SOUTHERN CORPORATION AND GEORGIA POWER COMPANY

SUPPLEMENTAL ORDER WITH RESPECT TO PROPOSED MINOR CHANGES IN INDENTURE PROVISIONS

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 5th day of March, A. D. 1941.

The Commission having by order entered February 27, 1941, granted an application pursuant to section 6 (b) of the Public Utility Holding Company Act of 1935 for exemption from the provisions of section 6 (a) of that Act of the issuance and sale by Georgia Power Company of $101,271,000 of First Mortgage Bonds, 3½% Series, due 1971; and

Georgia Power Company having, on March 5, 1941, filed an amendment in which it proposes to make certain minor modifications in the provisions of the indenture securing said Bonds, and having requested that the Commission enter an order permitting the making of said modifications in said indenture and, on the basis of said modifications, reaffirming its previous order of February 27, 1941 granting said application; and

It appearing to the Commission that said proposed modifications in said indenture are of a minor character, and are not inconsistent with the public interest and with the interests of investors and consumers;

It is hereby ordered, That said amendment be and is hereby made a part of the record herein; that the making of said modifications in said indenture as set forth in said amendment be and is hereby permitted; and that, on the basis of said proposed modifications in said indenture and on the basis of the record as so modified, said order of February 27, 1941, be and is hereby reaffirmed, subject to the same terms and conditions prescribed in said order of February 27, 1941.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 41-1665; Filed, March 6, 1941; 11:17 a. m.]

[File No. 70-250]

IN THE MATTER OF PUBLIC SERVICE COMPANY OF OKLAHOMA

ORDER PERMITTING DECLARATION TO BECOME EFFECTIVE

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 5th day of March, A. D. 1941.

The above named person having filed a declaration pursuant to the Public Utility Holding Company Act of 1935, particularly Section 7 thereof and Rule U-12C-1 thereunder regarding the Company's proposal to issue and sell (a) $16,000,000 principal amount of First Mortgage Bonds, Series A, 3%, due February 1, 1971, and (b) 83,500 shares of 5% Preferred Stock, Cumulative, of the par value of $100 per share and to apply the proceeds from the sale of said securities, together with other moneys of the Company, to the redemption of $16,000,000 principal amount of outstanding First Mortgage Bonds, Series A, 4%, due February 1, 1966, of the Company, $3,213,100 par amount of outstanding Seven Per Cent Prior Lien Stock of the Company and $5,136,900 par amount of outstanding Six Per Cent Prior Lien Stock of the Company; and

Said declaration having been filed on February 7, 1941, and certain amendments having been filed thereto, the last of said amendments having been filed on March 5, 1941, and notice of said filing having been duly given in the form and manner prescribed by Rule U-8 promulgated pursuant to said Act, and the Commission not having received a request for hearing with respect to said declaration within the period specified in said notice, or otherwise, and not having ordered a hearing thereon; and

The above named party having requested that said declaration as filed or as amended become effective not later than the effective date of the Registration Statement, Form A-2, filed with the Commission under the Securities Act of 1933 with respect to securities covered by this declaration; and

The Commission deeming it appropriate in the public interest and the interest of investors and consumers to permit the said declaration pursuant to Rule U-12C-1 to become effective and finding with respect to said declaration under Section 7 of said Act that the requirements of Section 7 (c) of said Act are satisfied and that no adverse findings are necessary under Section 7 (d) of said Act and being satisfied that the effective date of such declaration as amended should be advanced:

It is hereby ordered, Pursuant to said Rule U-8 and the applicable provisions of said Act and subject to the terms and conditions prescribed in Rule U-9 that the aforesaid declaration as amended be and hereby is permitted to become effective forthwith.

By the Commission.

Judge Healy dissenting for the reasons set forth in his memorandum of April 1, 1940.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 41-1667; Filed, March 6, 1941; 11:17 a. m.]

[File No. 70-268]

IN THE MATTER OF EASTERN SHORE PUBLIC SERVICE COMPANY (DEL.)

NOTICE REGARDING FILING

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 5th day of March, A. D. 1941.

Notice is hereby given that a declaration or application (or both), has been filed with this Commission pursuant to the Public Utility Holding Company Act of 1935 by the above-named party; and

Notice is further given that any interested person may, not later than March 22, 1941, at 1:00 P. M., E. S. T., request the Commission in writing that a hearing be held on such matter, stating the reasons for such request and the nature of his interest, or may request that he be notified if the Commission should order a hearing thereon. At any time thereafter such declaration or application, as filed or as amended, may become effective, or may be granted, as provided in Rule U-8 of the Rules and Regulations promulgated pursuant to said Act. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington, D. C.

All interested persons are referred to said declaration or application, which is on file in the office of said Commission, for a statement of the transactions therein proposed, which are summarized below:

Eastern Shore Public Service Company (Del.), a registered holding company, proposes to advance, on open account bearing interest at the rate of 4%, not exceeding $300,000, from time to

time to its following subsidiaries as such subsidiaries shall need funds for construction:

The Eastern Shore Public Service Company of Maryland	$100,000
The Maryland Light & Power Company	75,000
Eastern Shore Public Service Company of Virginia	125,000

The applicant has indicated section 12 (b) of the said Act and Rule U-12B-1 promulgated thereunder as being applicable to the proposed advances.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 41-1672; Filed, March 6, 1941; 11:18 a. m.]

[File No. 812-138]

IN THE MATTER OF CARIB SYNDICATE, LIMITED

NOTICE OF AND ORDER FOR HEARING

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 5th day of March, A. D. 1941.

An application having been duly filed by the above named applicant under and pursuant to section 6 (c) of the provisions of the Investment Company Act of 1940 for an order of temporary exemption to permit the transmittal of reports to stockholders, at a date later than that prescribed by Rule N-30D-1 but in any event on or before April 1, 1941;

It is ordered, That a hearing on the matter of the application of the above named applicant under and pursuant to section 6 (c) of the Investment Company Act of 1940 be held on March 10, 1941 at 9:45 o'clock in the forenoon of that day at the Securities and Exchange Building, 1778 Pennsylvania Avenue Northwest, Washington, D. C. On such day the hearing room clerk in Room 1102 will advise the interested parties where such hearing will be held.

It is further ordered, That Willis E. Monty, Esq., or any officer or officers of the Commission designated by it for that purpose shall preside at such hearing on such application. The officer so designated to preside at any such hearing is hereby authorized to exercise all the powers granted to the Commission under Sections 41 and 42 of the Investment Company Act of 1940 and to trial examiners under the Commission's Rules of Practice.

Notice of such hearing is hereby given to the above named applicant and to any other person or persons whose participation in such proceedings may be in the public interest or for the protection of investors.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 41-1666; Filed, March 6; 1941; 11:17 a. m.]

[File No. 70-270]

IN THE MATTER OF GENERAL GAS & ELECTRIC CORPORATION

NOTICE REGARDING FILING

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 6th day of March, A. D. 1941.

Notice is hereby given that a declaration has been filed with this Commission pursuant to the Public Utility Holding Company Act of 1935 by the above-named party; and

Notice is further given that any interested person may, not later than March 12, 1941 at 4:30 P. M., E. S. T., request the Commission in writing that a hearing be held on such matter, stating the reasons for such request and the nature of his interest, or may request that he be notified if the Commission should order a hearing thereon. At any time thereafter such declaration, as amended, may become effective as provided in Rule U-8 of the Rules and Regulations promulgated pursuant to said Act. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington, D. C.

All interested persons are referred to said declaration which is on file in the office of said Commission for a statement of the transactions therein proposed, which are summarized below:

The declarant, General Gas & Electric Corporation, a registered holding company, proposes to pay on March 15, 1941 its regular dividend, aggregating $75,000 on its 60,000 shares outstanding $5 prior preferred stock, (27,889.1 shares being held by Denis J. Driscoll and Willard L. Thorp, Trustees of Associated Gas and Electric Corporation, and 32,110.9 by the public).

The declaration reveals that an accounting reorganization of declarant was consummated as of December 31, 1937, concerning the validity of which there is some doubt. In the event that such accounting reorganization should prove to have been invalid, declarant would today have a substantial earned surplus deficit.

The declarant has designated section 12 (c) and Rule U-12C-2 as applicable to the proceeding.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 41-1698; Filed, March 6, 1941; 12 m.]

UNITED STATES CIVIL SERVICE COMMISSION.

CONDITION OF THE APPORTIONMENT AT CLOSE OF BUSINESS FRIDAY, FEBRUARY 28, 1941, BASED ON 1940 CENSUS

Important. Although the apportioned classified Civil Service is by law located only in Washington, D. C., it nevertheless includes only about half of the Federal Civilian positions in the District of Columbia. Positions in local post offices, customs districts and other field services outside of the District of Columbia which are subject to the Civil Service Act are filled almost wholly by persons who are local residents of the general community in which the vacancies exist. It should be noted and understood that so long as a person occupies, by original appointment, a position in the apportioned service, the charge for his appointment continues to run against his State of original residence. Certifications of eligibles are first made from States which are in arrears.

State	Number of positions to which entitled	Number of positions occupied
IN ARREARS		
1. Virgin Islands	11	0
2. Puerto Rico	850	46
3. Hawaii	193	20
4. Alaska	33	11
5. California	3,141	1,062
6. Texas	2,917	1,337
7. Louisiana	1,075	524
8. Michigan	2,390	1,257
9. Arizona	227	125
10. South Carolina	864	508
11. New Mexico	242	152
12. Kentucky	1,294	827
13. Mississippi	993	637
14. Georgia	1,420	918
15. Alabama	1,288	853
16. North Carolina	1,624	1,096
17. Arkansas	886	603
18. Ohio	3,141	2,170
19. Nevada	59	36
20. New Jersey	1,892	1,383
21. Tennessee	1,326	1,064
22. Florida	863	707
23. Oklahoma	1,062	921
24. Illinois	3,591	3,212

State	Number of positions to which entitled	Number of positions occupied
IN ARREARS—Continued		
25. Indiana	1,559	1,414
26. Wisconsin	1,427	1,342
27. Idaho	239	225
28. New York	6,129	5,994
29. West Virginia	865	857
30. Delaware	121	120
31. Washington	790	788
QUOTA FILLED		
32. Oregon	496	496
IN EXCESS		
33. Minnesota	1,270	1,278
34. Missouri	1,721	1,732
35. Colorado	511	517
36. Pennsylvania	4,502	4,643
37. Connecticut	777	805
38. Vermont	163	169
39. New Hampshire	223	237
40. Maine	385	413
41. Iowa	1,154	1,240
42. Massachusetts	1,963	2,145
43. Wyoming	114	128
44. Utah	250	286
45. Rhode Island	324	374
46. South Dakota	292	353
47. Montana	254	327
48. Kansas	819	1,098
49. Nebraska	598	829
50. North Dakota	292	419

State	Number of positions to which entitled	Number of positions occupied
IN EXCESS—Continued		
51. Virginia	1,218	2,104
52. Maryland	828	2,225
53. District of Columbia	302	8,935

GAINS	
By appointment	420
By transfer	30
By Reinstatement	4
By Correction	2
Total	456
LOSSES	
By Separation	56
By Transfer	54
Total	110
Total Appointments	60,962

NOTE: Number of employees occupying apportioned positions who are excluded from the apportionment figures under Sec. 3, Rule VII, and the Attorney General's Opinion of August 25, 1934, 17,954.

By direction of the Commission.

L. A. MOYER,
Executive Director and Chief Examiner.

[F. R. Doc. 41-1658; Filed, March 5, 1941; 4:19 p. m.]

UNITED STATES TARIFF COMMISSION.

INVESTIGATION UNDER TARIFF ACT OF 1930 WITH RESPECT TO WOOL KNIT OR CROCHETED GLOVES AND MITTENS

POSTPONEMENT OF HEARING

The United States Tariff Commission on this 5th day of March 1941 announces that because of abnormal conditions now prevailing in the wool knit glove trade, due in part to large orders placed by the Government as part of the Defense Program, and in compliance with the request of parties interested, the public hearing heretofore set in this investigation to be held on March 20, 1941,[1] is hereby postponed. When more normal conditions prevail in the wool knit glove trade the date for a hearing in this investigation will again be considered.

By order of the United States Tariff Commission this 5th day of March 1941. Notice issued March 5, 1941.

[SEAL] E. M. WHITCOMB,
Acting Secretary.

[F. R. Doc. 41-1693; Filed, March 6, 1941; 11:32 a. m.]

[1] 6 F.R. 1081.